

Petition for Approval of Minor's Compromise for Riley Chun

Petitioner seeks costs of \$2,521.20 to be paid for out of the minor's gross settlement payment. Petitioner provides an invoice of costs as Attachment 13b which supports total costs of \$10,068.52. Attachment 13b also specifies that "total costs were split amongst the plaintiffs." It appears there are two problems here. First, as there are six plaintiffs in this action (four minor plaintiffs by and through their guardian ad litem and two adult plaintiffs), a one-sixth portion of the costs of \$10,068.52 would amount to only \$1,678.08 per plaintiff—significantly less than the costs being sought per minor. Second, it appears petitioner may be requesting the minors to bear responsibility for the costs but not the adult plaintiffs. While the court questions the fairness of this request, even if this is what petitioner was intending, a one-fourth portion of the costs of \$10,068.52 would amount to only \$2,517.13, which is still less than the costs petitioner is requesting per minor.

Based on the foregoing, the petition is denied without prejudice. If oral argument is requested, the appearance of the minor at the hearing is excused.

7. S-CV-0053860 Gascon, Haley v. Sutter Medical Found.

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion for Summary Judgment

Defendant Richard G. Juarez moves for summary judgment of plaintiffs' complaint for (1) medical negligence and (2) loss of consortium. Plaintiffs' do not oppose the motion.

Defendant's request for judicial notice is granted.

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Defendant submits evidence, including expert testimony, that he was the anesthesiologist for plaintiff Haley Gascon's appendectomy on July 29, 2023 and that his treatment of plaintiff complied with the standard of care at all times. (SSUMF Nos. 2–4, 6.) Performing surgery, including a laparoscopic appendectomy, is outside the anesthesiologist's scope of practice. (SSUMF No. 5.) To a reasonable degree of medical

probability, no act or omission attributable to Dr. Juarez caused or contributed to plaintiff's injuries. (SSUMF No. 7.)

Defendant presents sufficient evidence to support his initial burden of showing entitlement to judgment on plaintiff Haley Gascon's claim for medical negligence and plaintiff Christopher Gates' associated claim for loss of consortium.

The burden therefore shifts to plaintiffs to show one or more triable issues of material fact. As plaintiffs submitted no evidence and in fact filed a notice of non-opposition, plaintiffs fall short of their burden.

Based on the foregoing, defendant Richard G. Juarez's motion for summary judgment is granted.

8. S-CV-0054035 Rojas, Jasmine v. Ford Motor Co.

The motion for attorneys' fees is dropped from calendar as no moving papers were filed with the court.

9. S-CV-0054693 Pereira, Christine v. Hammerhead Pools

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Petitioner is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition to Confirm Arbitration Award

Petitioner Christine Pereira asks the court to confirm an arbitration award and enter judgment thereon against Hammerhead Pools, LLC. No opposition has been filed.

"A party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration" (Code Civ. Proc., § 1285.) Such a petition shall provide the agreement to arbitrate, the name(s) of the arbitrator(s), and the arbitrator's award. (Code Civ. Proc., § 1285.4.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, . . . unless in accordance with this chapter it corrects and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

The unopposed petition is granted as prayed. The court confirms the award of arbitrator issued on January 6, 2026 in favor of petitioner as against respondent Hammerhead Pools, LLC. Petitioner's request for pre-judgment interest is granted in the amount of \$14,149.47. Judgment is entered for petitioner against respondent Hammerhead Pools, LLC in the amount of \$454,512.83, which includes damages in the amount of \$335,361,